



2025:AHC:191370-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD**

**WRIT - C No. - 11205 of 2025**

Smt. Kiran Singh

.....Petitioner(s)

Versus

State Of Up And 5 Others

.....Respondent(s)

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|---------------------------|-----------------------------------------------------------------|
| Counsel for Petitioner(s) | : Bhanu Bhushan Jauhari, Garima Singh,<br>Rishi Bhushan Jauhari |
| Counsel for Respondent(s) | : C.S.C., Krishna Agarawal, Narendra<br>Kumar Tiwari            |

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**Court No. - 3**

**HON'BLE SAUMITRA DAYAL SINGH, J.**

**HON'BLE INDRAJEET SHUKLA, J.**

1. Heard Sri Bhanu Bhushan Jauhari, along with Sri Rishi Bhushan Jauhari, learned counsel for the petitioner and Sri Rakesh Kumar Mishra, Advocate holding brief of Sri Narendra Kumar Tiwari, learned counsel for Distribution Corporation and learned Standing Counsel for the State-respondents.

2. Petitioner is the landlord of residential premises that had been earlier let out to private respondent nos.5 & 6 i.e. Saurabh Singh and Sarvadev Singh respectively. For sometime the electricity connection at premises rented out to the private respondents stood in the name of petitioner. Later, with the consent of the petitioner a fresh electricity connection was granted at the rented premises occupied by private respondent nos.5 and 6, in their names. Those private respondents have vacated the residential accommodation on 15.10.2023. However, there exist electricity dues against the connection obtained by the private respondents with the consent of the present petitioner which connection was installed at the property owned by the petitioner.

3. Presently, the petitioner has applied for grant of electricity connection. That application is not being processed by the Distribution Corporation, on the ground of outstanding dues of the private respondents.

4. Submission of learned counsel for the petitioner is, the petitioner's right to obtain fresh electricity connection cannot be denied for reason of outstanding dues of private respondent nos. 5 and 6. By refusing to issue recovery certificate against the private respondents and by denying the

electricity connection to the petitioner, the Distribution Corporation is acting arbitrarily and contrary to the law.

5. On the other hand, learned counsel for the Distribution Corporation has relied on paragraph no. 4.3 (f)(vi) of U.P. Electricity Supply Code, 2005 to assert that the responsibility of the petitioner remains to deposit the outstanding dues of electricity arising from the connection granted with his consent, at premises owned by him. The petitioner may have remedies against the private respondent nos. 5 and 6 but it cannot seek a direction on the Distribution Corporation to install the fresh electricity connection and seek recovery from private respondent nos. 5 and 6 independent of the connection sought by the petitioner.

6. Last, it has been submitted that on 05.05.2025 an order has already been passed rejecting the representation of the petitioner. Copy of the same has been made available to the petitioner during course of the hearing today.

7. Having heard learned counsel for the parties and having perused the record, writ jurisdiction remains an equitable jurisdiction where appropriate directions may be issued in the interest of justice. In the context of the facts brought before us it is not denied to the petitioner that it not only let out the premises to private respondent nos. 5 and 6 but had also given consent to the Distribution Corporation to install an electricity connection at the premises rented out to the private respondent nos. 5 and 6.

8. Clause 4.3(f)(vi) of U.P. Electricity Supply Code, 2005 clearly fastens the liability on the petitioner to ensure payment of all dues of electricity by the tenant, before he vacates the premises. That being the nature of liability or duty cast on the petitioner, we are not inclined to hear the petitioner on the plea that though it has failed to discharge that obligation, it may still enforce a writ of mandamus on the Distribution Corporation to grant a fresh electricity connection to the petitioner at the same premises and thus, force the Distribution Corporation with no remedy but to pursue the tenant in whose favor electricity connection was granted on the strength of consent given by the petitioner.

9. We are mindful but for that consent no electricity connection may not have been granted to private respondent nos. 5 and 6. In that event, the electricity connection would have remained in the name of the petitioner only. Thus, the petitioner has altered the position by his conduct of consent

given in favour of the private respondent no. 5 and 6.

10. Keeping that fact in mind, unless the duty cast on the petitioner under Clause 4.3(f)(vi) is first discharged by the petitioner no writ of mandamus may be enforced against the Distribution Corporation as may result in defeating the recovery or prejudicing the recovery proceedings or as may further enable the petitioner to circumvent the law and avoid its duty under the above noted provision of law.

11. In view of above, we find no merit in the writ petition. It is accordingly, dismissed.

**October 30, 2025**

Mohit

**(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)**